Organizational structures in the policy sector Toxic Chemicals Control

Volker Schneider
European University Institute Florence

Abbreviation: _____

Name of organization: _____

Type of organization: _____

Actor level: _____

Field of interest: _____

Legal status: _____

1st interview partner:

Title/function: _____

Telephone number: _____

Place and date of interview: _____

2nd interview partner:

Title/function: _____

Telephone number: _____

Place and date of interview: _____

Special questions: _____

Part A: Objectives, Roles and Interests

A1. **Roles**

What are the organization's objectives, main activities, mission or roles?

Are brochures/leaflets available from which this information can be obtained?

A3. **Field of Action**

In which political fields of action does (`name of organization`) work?

- Economic Policy ☐
- Consumer Policy ☐
- Defense Policy ☐
- Education Policy ☐
- Energy Policy ☐
- Environmental Policy ☐
- Foreign Affairs ☐
- Health Policy ☐
- Industrial Policy ☐
- Social Policy ☐
- Development Policy ☐
- Legal Policy ☐
- Housing Policy ☐
- Labor Market Policy ☐
- Agricultural Policy ☐
- Other: ☐

A4. **Size of Organization**

Since when has (`name of organization`) been working in the field of "dangerous substances"/environmental chemicals?

How large is the amount of (`name of organization`)'s staff employed in the fields of chemicals and chemical control, respectively (full-time position)?

How did the organization develop in this regard in the past 15 years?

Part B: Policy-topics, Positions

B2. **Philosophy of the issue**

Different views on the issue of chemical substances exist. Here are some examples:

a) The "issue of chemical substances" is based on the general position of human race towards nature; by intruding in our planet's natural circle of life with technology and industrialization, humans destroy functioning ecological relationships and hence their livelihood. We have to step back and rediscover ways of living and production that are in line with nature.

b) The issue of chemical substances is in fact a socioeconomic and political problem that is based on the capitalist economic order. Driven by acquisitiveness, chemical corporations constantly put new products on the market which have not yet been sufficiently tested for their dangerous effects on humans and nature.

c) The issue of chemical substances is based on the rapid technological development where unintended side effects occur once in a while. Only through technical-scientific efforts, by developing new test methods and testing procedures, these kinds of effects can be minimized in the future. It is the role of the state to further research in this direction und to cooperate with the industry in this regard.

d) The issue of chemical substances does not exist. So far, the chemical industry has always tested the harmful effects sufficiently before putting them on the market. Public debates concerning this matter are only based on hysteria that is partly supported by radical groups and created or exploited by the media.

Which philosophy of the issue do you rather tend toward? Combinations are possible!

	a)	**b)**	**c)**	**d)**
Please tick	☐	☐	☐	☐

B3. **Public Relations**

Did your organization undertake public relations activities to raise awareness on the issue of chemical substances and environment or to push government authorities for finding solutions? If so, please specify:

B4. **Positions**

Did your organization develop an independent position regarding the problem of chemical control? If this is the case, please specify.

Were they phrased 1) by your organization exclusively or 2) in cooperation with other organizations?

by our organization exclusively ..... ☐
in cooperation with other organizations..... ☐

B5. **Types of regulation**

The issue of chemicals could also be tackled by other types of regulations than public types of regulation, e. g. by an independent self-monitoring of the chemical industry in cooperation with institutions as for example DIN. (example: safety data sheet). In 1976, VCI suggested such a self-monitoring process.

Which position did your organization have regarding this suggestion?

Which position do you generally have? a) regarding state control, b) regarding self-monitoring.

If you did not have a position before, generally speaking, how do you stand by both types of regulation?

B6. **National or International**

A very early issue was the decision in favor of

a) a fast national statutory rule independent of harmonization activities in the EC and OECD, or

b) an intensive course of action with these international organizations.

Did you have a position? If this is the case, what was your organization's position?

B7. **Small or big solution**

Another issue in the legislative process was making a decision

a) in favor of a "small solution" (Law on Environmental Chemistry).

b) in favor of an inter-departmental approach. (Integration of occupational health and safety protection, health protection, environmental protection.)

At that time, did you have a position on these alternatives? If this is the case, please specify.

B8. **Key elements of ChemG**

Already at an early stage, some key aspects of the chemicals law (ChemG) emerged that were also included in the version that was adopted. They implied decisions against other types of adjustments.

At that time, were you

		yes	no
a.	in favor of an application procedure instead of an admission procedure?	☐	☐
b.	in favor of a registration *prior to commercialization* instead of a registration prior to production/manufacturing?	☐	☐
c.	in favor of a limitation of a compulsory registration to new substances in contrast to solutions that in this regard aim at differenciating between new and old substances?	☐	☐
d.	in favor of a so-called *graduated scheme*?	☐	☐

Were there further points that you campaigned for or against? If so, please specify:

Part C: Participation in the Policy Process

C1. **Political Participation**

By which means does (`name of organization`) usually take part in political decision-making processes?

C2. **Participation in committees**

In which of the following committees did your organization's employees work, or rather in which committees was your organization represented?

☞ ***List of committees***

C3. **Forms of participation of ChemG**

In general, how was your organization involved in the policy making process of the chemicals law (ChemG)?

Your organization

phrased drafts and made decisions. ☐

performed an advisory function. ☐
did research in this field. ☐
supported and coordinated research. ☐
functioned as "clearing" point for information. ☐
developed alternative policies. ☐
supported specific political positions. ☐
worked together with other organizations in this field. ☐
mobilized other organizations. ☐
mobilized the public through the media. ☐
organized information events. ☐

☞ ***Please tick the boxes accordingly.***

C4. **Involvement in events**

In what follows, I would like to know how (`name of organization`) was involved in the "policy" process of the chemicals law (ChemG).

Below you will see a list of more or less relevant phases and events of chemical control of the past 15 years.

Please provide information on the ways in which (`name of organization`) was involved in the events.

National Level

	no activity	direct participation	other activities
1970/1971. E1. Establishment of the crash program for environmental protection and 1st environmental program of the government. The following measures are envisaged in the field "environmental chemicals": the establishment of a "Bund-Länder" committee at the BMJFG and the establishment of a "Centre for the Documentation and Evaluation of Environmental Chemicals"	☐	☐	☐
1970/1975. E2. The BMJFG is developing a national law on poison	☐	☐	☐
1970/1971. E3. The BMJFG develops/enacts the regulation on dangerous working substances	☐	☐	☐
1974 bis 1976. E4. Research and other activities are coordinated, as well as information about the field of chemicals exchanged, in the inter-ministerial project group for environmental chemicals and within the BLAU	☐	☐	☐
1976–1977. E5. The Ministry of the Interior develops a Law on Chemical Substances and holds debates with interested groups. It presents a first draft in 1977	☐	☐	☐
1978. E6. Talks between the departments: agreement on a joint decision-making and establishment of an inter-ministerial working group. Different draft legislations are developed and distributed to interested groups. The federal cabinet decides to submit a Law on Chemical Substances to the German Bundestag during that legislative period: the "biggest" possible solution	☐	☐	☐
1979. E7. Under the auspices of the BMJFG, the participating departments submit a preliminary draft that is sent to interested federations and organizations for their opinions. This is followed by public debates and discussions at the ministerial level. Marginally revised, the draft is adopted by the federal cabinet as government law and sent to the upper house of the German parliament (Bundesrat)	☐	☐	☐
1979. E8. The upper house of the German parliament presents the draft to the plenum, discusses it in different commissions and a sub-commission. It gives its opinion with approximately 100 suggestions for modification	☐	☐	☐
1978/1980. E9. 1. A reading in the German Bundestag and relegation to the specially established sub-committee on "Law on Chemical Substances". Consultation and hearing of the draft in the sub-committee. 2nd and 3rd reading in the German Bundestag and adoption of the draft	☐	☐	☐
1981. E10. Enactment of the most important statutory orders: registration and assessment department; regulations on application documents and test certificates etc.	☐	☐	☐

EG-Level

	no activity	direct participation	other activities
1975. E11. France prepares Law on Chemical Substances and informs the OECD and EC about it. The German federal government fears trade barriers and urges the EC to act.	☐	☐	☐
1976. E12. The EC expands the modification of the directive of 67 on dangerous substances. The EC commission submits a draft on the 6th amendment.	☐	☐	☐
1977. E13. The Federal Republic of Germany presents an alternative draft. The different positions are discussed in expert groups at the commission and Council of Ministers of the EC. In summer 1979, the Council of Ministers adopts the 6th change directive.	☐	☐	☐
1980 ff.. E14. EC working groups negotiate the 5th annex.	☐	☐	☐

International Level

	no activity	direct participation	other activities
1973. E15. Switzerland, Japan, Sweden and other industrial nations adopt the Law on Chemical Substances. Efforts of harmonization are initiated in the OECD. Negotiations in the "sector groups"	☐	☐	☐
1977/1978. E16. The USA adopt their TSCA; it is implemented in 1977. Subsequently, efforts of harmonization are strengthened. At the international conference on chemical control in Stockholm (Hässelby), the OECD is selected as the most appropriate international forum for harmonization.	☐	☐	☐
1978–1982. E17. The OECD establishes specific programs for mutual harmonization of statutory rule and test procedures (Chemicals Testing Program, Chemicals Management Program).	☐	☐	☐

C5a. Were there further topics or events in this policy sector that were important to your organization? We would kindly ask you to name them.

_____

_____

Part D: Communication

D1a. Enclosed you will find a list of organizations that played an important role in the decision-making process of the Law on Chemical Substances. We would like to kindly ask you to list the names of all organizations with which you used to exchange information on issues regarding chemical control on a regular basis.

D1b. Concerning this, are there important organizations that are not on the list? If this is the case, please specify.

D2a. Scientific and technical information was of central importance in the decision-making process of the Law on Chemical Substances.

a) From which of the organizations mentioned on the list does (`name of organization`) usually receive scientific and technical information?

b) To which of the organizations does (`name of organization`) deliver such information?

D2b. In this regard, are there organizations that are not on the list?

D3a. Please identify those organizations on the list that receive monetary contributions from (`name of organization`) as payment for provisions of a service, membership fees, or donations.

D3b. Could you please name those organizations that provide (`name of organization`) with such monetary contributions?

D4a. Please name the organizations that your organization supports by providing staff and/or equipment.

D4b. Which organizations support your organization in this manner?

D5a. Many organizations possess executive committees, supervisory and advisory boards, advisory councils, or boards of trustees in which employees of other organizations participate or are represented.

To which of the organizations on the list does your organization have this kind of personnel relationships?

D5b. Does your organization possess this type of boards? How are they referred to?

Which of the organizations on the list are represented in them? (please refer to the list if possible)

D6. Which of the organizations on the list were especially influential in the policy-making process of the Law on Chemical Substances?

D7. Are there influential organizations that were not on the list?

D8a. In order to influence political decisions, organizations require certain resources. Some possibilities are listed below:

1. Expertise
2. Financial resources
3. Employees and technical facilities
4. Decision-making authority and important positions within the state's structure
5. Good relations to influential organizations
6. The capability to ensure the support of politics according to one's branch of service
7. High degree of representation and organization
8. Capability to mobilize the public
9. Good image in the public

D9a. In your opinion, which are the most important resources that belong to your organization?

1	**2**	**3**	**4**	**5**	**6**	**7**	**8**	**9**
☐	☐	☐	☐	☐	☐	☐	☐	☐

D9b. We would kindly ask you to identify the influential resources of the 5 organizations best known to you on the list.

	1	**2**	**3**	**4**	**5**	**6**	**7**	**8**	**9**
1).....	☐	☐	☐	☐	☐	☐	☐	☐	☐
2).....	☐	☐	☐	☐	☐	☐	☐	☐	☐
3).....	☐	☐	☐	☐	☐	☐	☐	☐	☐
4).....	☐	☐	☐	☐	☐	☐	☐	☐	☐
5).....	☐	☐	☐	☐	☐	☐	☐	☐	☐

Additional information regarding Part III:

Supplementary Questions to the Questionnaire "Organizational structures in the policy sector Toxic Chemicals Control"

Name of organization:

_____

Interviewee:

_____

Interests

The issue of chemicals is only one of several areas which your organization dealt with. If you compare the issue of "dangerous substances" with other conflict areas your organization was involved in, which importance would you attribute to the topic "dangerous substances" from your organization's point of view?

highly relevant						**non-relevant**
1	**2**	**3**	**4**	**5**	**6**	**7**
☐	☐	☐	☐	☐	☐	☐

Activities

How would you estimate the amount of time, money and personnel that you invested to gain influence on the policy-making process of the Law on Chemical Substances?

very high						**very low**
1	**2**	**3**	**4**	**5**	**6**	**7**
☐	☐	☐	☐	☐	☐	☐

Results

To which extent does the outcome of the Law on Chemical Substances meet your organization's wishes, expectations, and demands?

completely						not at all
1	**2**	**3**	**4**	**5**	**6**	**7**
☐	☐	☐	☐	☐	☐	☐

☞ ***Please send this questionnaire to my German postal address:***

Volker Schneider
Wennenderstraße 6
7902 Blaubeuren
Germany